

TERMS, CONDITIONS AND REQUIREMENTS OF TOWNSHIP OF LIVINGSTON PURCHASE
ORDERS (rev. 03/21)

This order, if accepted, is subject to the following terms and conditions:

1. The Township of Livingston is not responsible for materials, supplies, services, or equipment delivered without authority of its written order.
2. The Township reserves the right:
 - a. To reject and return at Seller's/Vendor's expense material in excess of quantity ordered or defective materials;
 - b. To reject delivery and/or cancel this order or any or all installment deliveries under it upon failure to ship the order or any installment of it within the time or times specified, or to ship the quantity or quality ordered;
 - c. In the event of a and/or b above, to procure the goods or services from other sources and hold the Seller/Vendor responsible for any excess cost, expense and/or damages occasioned thereby;
 - d. To suspend or cancel deliveries during the existence of strikes, labor disturbances, secondary boycotts, fires, floods or other situations arising from causes not within our practicable control.
3. Do not overship or substitute. Ship EXACTLY as ordered.
4. All items delivered on this order are to be new and the manufacture or product of the United States or its territorial possessions, unless otherwise specified.
5. All materials, supplies or equipment shipped by freight, express or parcel post must have all charges fully prepaid to point of delivery unless otherwise arranged for and expressly stated on this order.
6. All materials, supplies, equipment, and services received are subject to inspection and acceptance by the Township.
7. All goods and articles furnished hereunder are warranted to be merchantable and free from all material defects and of good workmanship and fit for the purposes intended. It is further guaranteed that all goods and articles conform to the specifications included or referred to herein. This warranty shall survive any inspection, delivery, acceptance or payment by the Township for material or service.
8. Each package must contain a packing slip showing Shipper's name, contents, Township Purchase Order #, and the Department Name for whom delivery is intended.
9. In the performance of this order, Seller/Vendor will comply with the provisions of the Fair Labor Standards Act and of any other applicable Federal or State Laws and regulations, and Seller/Vendor further agrees that any provisions required by such laws and regulations to be included herein shall be deemed to be incorporated by reference.
10. The Vendor shall pay prevailing wages where applicable for public work.
11. This order or contract shall be governed by the Laws of the State of New Jersey.
12. All goods and articles furnished hereunder shall comply with all regulations and specifications, including but not limited to OSHA regulations and specifications in effect at the time of delivery.
13. All invoices must be sent to the corresponding department. Separate invoices must be rendered for each order. Invoices for partial shipments shall not be considered due for payment until shipment is completed or balance of order has been cancelled by or agreed upon by the Township.
14. This Purchase Order may terminate and will be null and void unless the goods and articles called for herein shall be delivered or supplied within one calendar year.
15. Seller/Vendor shall have been deemed to accept this written order contained herein by either signing the Purchase Order or by shipping the goods called for herein in the time period specified.
16. This Purchase Order shall not be assignable by the Seller/Vendor without the written consent of the Township.
17. The Seller/Vendor hereby agrees to hold harmless, indemnify, and defend the Purchaser (Township) and its agents, employees and representatives against any claims which may be made against the Purchaser for breach of any and all express or implied warranties or liability for actual or alleged patent infringement claims, which may arise out of the use of the goods, merchandise, materials, products and/or services purchased herein.

18. In order to comply with NJ Worker and Community Right to Know Act, the Safety Data Sheet(s) and Labeling must accompany the shipment (where applicable).
19. The vendor shall maintain all documentation related to products, transactions or services under this contract for a period of five years from the date of final payment. Such records shall be made available to the New Jersey Office of the State Comptroller upon request.
20. Address acknowledgements and all communications relating to this Purchase Order to the Purchasing Manager, Township of Livingston ("Township"), 357 South Livingston Avenue, Livingston, NJ 07039. Be sure to include the Purchase Order # on all correspondence.

This purchase order is also governed by:

- Affirmative Action: See N.J.S.A. 10:5-31 et seq. and N.J.A.C. 17:27 et seq.
- Prompt Payment Law: See N.J.S.A. 2A:30A-1 et seq. for Construction Contracts Only
- Business Registration: See N.J.S.A. 52:32-44 and N.J.S.A. 54:49-4.1